



POLICE DEPARTMENT

November 2, 2012

MEMORANDUM FOR: Police Commissioner

Re: Detective Raymond Lee
Tax Registry No. 904347
Detective Borough Manhattan
Disciplinary Case No. 2012-7290

The above-named member of the Department appeared before me on October 11, 2012, charged with the following:

1. Said Detective Raymond Lee, assigned to Detective Bureau¹ Manhattan, on or about August 8, 2011, within the vicinity of New York County, failed and neglected to safeguard Department property assigned to him, to wit: Restricted Parking Permit# [REDACTED] resulting in the unauthorized use of said permit by Person A. (*As amended*)

P.G. 219-29, Page 5, Paragraph 15 – DISTRIBUTION AND USE OF NYPD
RESTRICTED PARKING PERMITS

The Department was represented by Penny Bluford-Garrett, Esq., Department Advocate's Office, and Respondent was represented by James Moschella, Esq.

Respondent, through his counsel, entered a plea of Guilty to the charge. A stenographic transcript of the mitigation record has been prepared and is available for the Police Commissioner's review.

¹ Should be 'Borough' not "Bureau."

DECISION

Respondent, having pleaded Guilty, is found Guilty.

SUMMARY OF EVIDENCE OFFERED IN MITIGATION

Respondent, a 19-year member of the service (MOS), testified that he has never previously been the subject of Charges and Specifications. He was assigned Restricted Parking Permit # [REDACTED] and he understood that this parking permit was provided to him by the Department solely for his personal use in his personal vehicle and that no one else was allowed to use this parking permit.

During the summer of 2011, when he left on a vacation trip, he left his personal vehicle with Person A for safekeeping. He left his Restricted Parking Permit inside the vehicle in the same place he always kept it, attached to the inside of the driver's side sun visor. There was no reason for Person A to drive Respondent's vehicle while he was away because Person A had his own car. When Respondent returned from his vacation trip, his Restricted Parking Permit was right where he had left it inside his vehicle.

Unbeknownst to Respondent, while he was away Person A had removed the Restricted Parking Permit from the vehicle, made a photocopy of the Restricted Parking Permit and placed the photocopy of the Restricted Parking Permit on the dashboard of his own car.

Respondent first discovered that Person A had photocopied his Restricted Parking Permit when Respondent was notified that Person A had been issued a parking ticket, on August 8, 2011, and that the Traffic Enforcement Agent (TEA) who issued the ticket had

observed that a photocopy of Respondent's Restricted Parking Permit was displayed on the dashboard of Person A's car.

On cross-examination, Respondent confirmed that the parking ticket that the TEA placed on the windshield of Person A's car on August 8, 2011, was issued for illegally parking in a "No Standing" zone.

PENALTY

In order to determine an appropriate penalty, the Respondent's service record was examined. See *Matter of Pell v. Board of Education*, 34 N.Y. 2d 222 (1974).

Respondent was appointed to the Department on August 30, 1993. Information from his personnel record that was considered in making this penalty recommendation is contained in an attached confidential memorandum.

Respondent has pleaded guilty and admitted that he failed and neglected to safeguard his Department-assigned Restricted Parking Permit which resulted in the unauthorized use of this Restricted Parking Permit by Person A. It is clear that Respondent's mistake here was that he trusted Person A.

The Assistant Department Advocate recommended that Respondent forfeit 20 vacation days as a penalty.

A review of recent decisions where uniformed MOS have pleaded guilty to having failed to safeguard a Restricted Parking Permit shows that 20-day penalties have generally been imposed only where: the MOS had a prior formal disciplinary record [See *Case No. 2010-2126* (July 19, 2011)]; or the MOS was guilty of misconduct in addition to failing to safeguard a permit [See *Case No. 2010-1708* (Nov. 15, 2011)]; or the MOS

was aware that the permit had been taken by the person who copied it [See *Case No. 2010-86293* (March 9, 2011)]; or multiple copies of the permit were produced [See *Case Nos. 2010-86244* (Sept. 29, 2010) and *2010-86336* (Jan. 11, 2011)]; or the 20-day penalty consisted of forfeiting days already served on suspension [See *Case No. 2011-4828* (March 26, 2012)]. None of the above-cited factors is present here.

Respondent is a 19-year MOS who has no prior formal disciplinary record. In three cases where each of the Respondents also had no prior formal disciplinary records and each of the Respondents had less than 19 years of service, and where the facts were the same as the facts presented here, penalties of less than 20 vacation days were imposed [See *Case Nos. 2009-85151* (April 27, 2010) 18 vacation days; *2010-2079* (Oct. 25, 2011) 18 vacation days; and *2010-781* (June 29, 2011) ten vacation days].

In formulating a penalty recommendation here, I have also taken into consideration that Respondent has consistently earned excellent performance evaluations.

I, therefore, recommend that Respondent forfeit 15 vacation days as a penalty.

Respectfully submitted,

Robert W. Vinal
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Robert W. Vinal
Assistant Deputy Commissioner - Trials

APPROVED

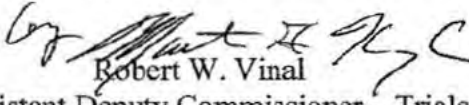
Raymond W. Kelly
DEC 8 8 2012
RAYMOND W. KELLY
POLICE COMMISSIONER

POLICE DEPARTMENT
CITY OF NEW YORK

From: Assistant Deputy Commissioner - Trials
To: Police Commissioner
Subject: CONFIDENTIAL MEMORANDUM
DETECTIVE RAYMOND LEE
TAX REGISTRY NO. 904347
DISCIPLINARY CASE NO. 2012-7290

The Respondent received an overall rating of 4.5 on his 2011-2012 performance evaluation, 4.5 on his 2010-2011 evaluation, and 4.0 on his 2009-2010 evaluation. He has been awarded one Meritorious Police Duty medal. [REDACTED]
[REDACTED] He has no prior formal disciplinary record and no monitoring records.

For your consideration.

Robert W. Vinal

Robert W. Vinal
Assistant Deputy Commissioner - Trials